

HOUSE No. 815

The Commonwealth of Massachusetts

PRESENTED BY:

Mark J. Cusack, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to town committee elections and membership.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Gene John Cass</i>	<i>Braintree, Massachusetts</i>	<i>1/16/2025</i>

HOUSE No. 815

By Representative Cusack of Braintree (by request), a petition (accompanied by bill, House, No. 815) of Gene John Cass relative to town committee elections and membership. Election Laws.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 673 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to town committee elections and membership.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 52 of the General Laws is hereby amended by striking out section
2 2, as appearing in the 2022 Official Edition, and inserting in place thereof the following section:-

3 Section 2. Each political party shall, in every ward and town, elect at the biennial state
4 elections and presidential primaries a ward or town committee from among the members of the
5 party who either have enrolled on or before the ninetieth day prior to the last day for filing
6 nomination papers for such committees with the state secretary, or are newly registered voters in
7 their city or town enrolled in that political party and have not been enrolled in another political
8 party during the year preceding such last day for filing nomination papers. Ward and town
9 committee members shall hold office for a period of two years ending on the thirtieth day
10 following the day on which the biennial state elections or presidential primaries are next held and

11 until their successors shall have organized. If any member changes his residence from the ward
12 or town in which he was elected during the said two years, he shall cease to be a member at the
13 end of the calendar year during which said residence is changed. If any member, whether elected
14 or chosen to fill a vacancy, cancels or changes his party enrollment he shall forthwith cease to be
15 a member of said committee.

16 For the purposes of this chapter, notwithstanding the fact that ward lines in a city have
17 been redistricted subsequent to a biennial state elections or presidential primary, members of
18 ward committees elected from wards in existence at the time of a biennial state elections or
19 presidential primary shall continue to represent said wards until their successors shall have been
20 elected and organized under the redistricted ward lines at the biennial state elections or
21 presidential primary the next following said redistricting.

22 SECTION 2. Chapter 52 is hereby amended by striking out section 9, as so appearing,
23 and inserting in place thereof the following section:-

24 Section 9. Ward and town committees, respectively, shall not limit the number of
25 members of ward and town committees to be elected at the biennial state elections and
26 presidential primaries, as long as the number is not less than three for each ward and each town.
27 Notice of the number of committee members to be elected shall be given by the ward or town
28 committee, as the case may be, to the state secretary on or before August first of the year
29 preceding the year in which said persons are to be elected. In case a ward or town committee
30 fails to fix the number of members of a ward or town committee or to give such notice, the
31 number of members of such ward or town committee to be elected shall be the number of
32 members last so fixed or assigned.